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CASE #	CASE NAME	HEARING NAME
CVRI2400407	ERICKSON vs MARRIOTT INTERNATIONAL, INC.	DEMURRER ON 4TH AMENDED COMPLAINT

Tentative Ruling:

The Court SUSTAINS the demurrer to the second through sixth (2nd – 6th) causes of action without leave to amend.

IIED (2nd Cause of Action)

A cause of action for intentional infliction of emotional distress (“IIED”) requires: (1) extreme and outrageous conduct with the intent of causing, or reckless disregard of the probability of causing, emotional distress; (2) suffering of sever or extreme emotional distress; and (3) actual and proximate cause resulting from the conduct. (Hughes v. Pair (2009) 46 Cal. 4th 1035, 1050-51). “A defendant’s conduct is ‘outrageous’ when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Id. at 1050 [quoting Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1001] [internal quotation marks omitted]). In order to avoid a demurrer, the plaintiff must allege with “great specificity” the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Vasquez v. Franklin Management Real Estate Fund, Inc. (2013) 222 Cal.App.4th 819, 832.) Importantly, it is not enough that a defendant’s conduct be intentional and outrageous; the conduct must also be directed to the plaintiff or occur in the presence of a plaintiff of whom the defendant is aware. (Potter, supra, 6 Cal.4th at 1002 [quoting Christensen v. Superior Court (1991) 54 Cal.3d 868, 903] [emphasis added].) Importantly, a court is not required to accept blindly as true the conclusory allegation that a defendant’s conduct was extreme and outrageous; rather, it may decide it does not suffice as a matter of law. (Bock, supra, 225 Cal.App.4th at 235; Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 781; McClintock v. West (2013) 219 Cal.App.4th 540, 556; Mintz v. Blue Cross of California (2009) 172 Cal.App.4th 1594, 1609.)

In the 4AC, Plaintiff alleges that Alliance knew about the bed bug infestation in room 328 from a prior complaint and intentionally failed to take steps to eradicate the infestation, including failing to properly train employees, not changing bed skirts, and directing staff not to inspect for bed bugs. (4AC at ¶¶ 23-26, 28-30, 35-38, 68-71.) She also alleges Alliance authorized or ratified its employees’ conduct by failing to properly train employees and failing to terminate employees who do not protect guests. (4AC at ¶ 76.) Accepting the allegations of the 4AC as true, there is no question that Alliance’s alleged conduct might be characterized as despicable; however, the alleged outrageous behavior was not directed at Plaintiff, and Plaintiff was not present when the alleged outrageous actions occurred. Thus, there are insufficient allegations in the 4AC demonstrating that Alliance specifically intended to injure Plaintiff. “The requirement that

the defendant's conduct be directed primarily at the plaintiff is a factor which distinguishes intentional infliction of emotion distress from the negligent infliction of such injury." (Christensen, supra, 54 Cal.3d at 903-906; Potter, supra, 6 Cal.4th at 100-02.)

As there are no allegations that Alliance's conduct was directed at, or in the presence of, Plaintiff, she fails to allege sufficient facts to state a cause of action for IIED, and the demurrer should be sustained. Plaintiff has been given four opportunities to assert a proper cause of action and has been unable to do so, the Court DENIES further leave to amend.

Fraudulent Concealment (3rd Cause of Action)

The elements of a cause of action for fraud based on concealment are: "(1) The defendant must have concealed or suppressed a material fact; (2) the defendant must have been under a duty to disclose the fact to the plaintiff; (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." Kaldenbach v. Mutual of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850, internal quotation marks omitted.)

Fraud actions, including fraudulent concealment, are subject to strict requirements of particularity in pleading. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal. 3d 197, 216.) Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made." (Stansfield, supra, 220 Cal.App.3d at 73.) A plaintiff must allege what was said, by whom, in what manner (i.e. oral or in writing), when, and, in the case of a corporate defendant, under what authority to bind the corporation. (See, Goldrich v. Natural Y Surgical Specialties, Inc. (1994) 25 Cal.App.4th 772, 782.) The rationale for this "strict requirement of pleading" is not merely notice to the defendant, but because "allegations of fraud involve a serious attack on character, and fairness to the defendant demands that he should receive the fullest possible details of the charge in order to prepare his defense." (Committee on Children's Television, supra, 35 Cal.3d 197, 216.) "A plaintiff's burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must 'allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.'" (Id. [quoting Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157].)

Here, while Plaintiff generally alleges that Moving Defendants had knowledge of the existing bedbug infestation at the Hotel because of online reviews and a complaint from a prior guest of room 328, but failed to notify Plaintiff of the infestation [4AC at ¶¶ 80-85], she fails to identify any particular person who had such knowledge, what authority they had to bind Alliance, or that they intended to defraud Plaintiff.

Accordingly, the cause of action is not pled with the requisite specificity, and the demurrer should therefore be sustained. Again, because Plaintiff has been unable to state a valid cause of action despite repeated attempts, leave to amend is DENIED.

Private and Public Nuisance (4th and 5th Causes of Action)

A nuisance is broadly defined as a nontrespassory interference with the use and enjoyment of land. (San Diego Gas & Elec. Co. v. Sup. Ct. (Covalt)(1996) 13 Cal.4th 893, 937; see Civ. Code § 3479 [“anything injurious to health . . . [or] indecent or offensive to the senses, or an obstruction to free use of property so as to interfere with comfortable enjoyment of life or property . . .”].) A nuisance may be public, private or both. (Adams v. MHC Colony Park L.P. (2014) 224 Cal.App.4th 601, 610.) A private nuisance interferes with the use and enjoyment of plaintiff’s private property. (Id. at 610; Friends of H Street v. City of Sacramento (1993) 20 Cal.App.4th 152, 159-162; Rest. 2d Torts § 821D.) A public nuisance simultaneously affects an entire neighborhood, community or other large group of people. (Civ. Code § 3480; Adams v. MHC Colony Park L.P., supra, 224 Cal.App.4th at 610.)

In the present case, Alliance is correct that the negligence and nuisance causes of action are based on the same facts. (Compare, 4AC at ¶¶ 50-64 with ¶¶ 101-109, 112-120.) “Where negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim.” (El Escorial Owners’ Assn. v. DLC Plastering, Inc. (2007) 154 Cal.App.4th 1337, 1349.) A demurrer is properly sustained as to a duplicative cause of action when it adds nothing to the complaint. (Award Metals, Inc. v. Superior Court (1991) 228 Cal.App.3d 1128, 1135.) Since the nuisance causes of action are basically restatements of the negligence cause of action, the demurrer to these causes of action is SUSTAINED WITHOUT LEAVE TO AMEND.

Breach of Contract (6th Cause of Action)

Finally, Alliance demurs to the breach of contract cause of action on the ground that Plaintiff failed to attach a copy of the written agreement upon which its claim is based, or plead its terms verbatim. The elements for a breach of contract claim are: (1) a contract; (2) plaintiff’s performance or excuse for nonperformance; (3) breach; and (4) damages. (Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.) “If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.) Here, Alliance is correct that no contract between them and Plaintiff is attached to the 4AC, and the terms of any alleged written contract are not set forth verbatim in the 4AC. Accordingly, the Court SUSTAINS the WITHOUT LEAVE TO AMEND as to this cause of action as well.